

****27.06.2024****

****FRA Report - "GDPR in Practice - Experiences of Data Protection Authorities"*****

On June 11, 2024, the European Union Agency for Fundamental Rights (FRA) published the report titled "GDPR in Practice - Experiences of Data Protection Authorities," six years after the effective application (May 25, 2018) of Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (GDPR).

As a result of a request from the European Commission, the FRA collected information regarding the experiences, challenges, and practices of data protection authorities following the adoption of the GDPR.

This report is based on 70 interviews with representatives of data protection authorities from all 27 member states of the European Union, conducted between June 2022 and June 2023.

In this context, according to the report, among the challenges faced by most national data protection authorities when implementing the General Data Protection Regulation (GDPR) are the large number of complaints, the lack of human and financial resources, and an increasing workload.

Thus, the FRA calls on the member states of the European Union to ensure that national data protection authorities have the necessary resources to guarantee the protection of personal data of individuals.

The FRA report titled "GDPR in Practice - Experiences of Data Protection Authorities" highlights key issues, presents best practices, and suggests solutions.

According to the report, the lack of resources and underfunding prevent national data protection authorities from fully fulfilling their mandates. New legislative acts of the European Union, such as the Artificial Intelligence Act or the European Union's border management systems, will create additional burdens for them. These will be difficult to implement without adequate resources. Member states of the European Union should ensure the financial, human, and technical resources necessary to enable data protection authorities to fulfill their role.

It was also found that national data protection authorities need more tools to enhance their supervisory capacity. The European Commission and the European Data Protection Board (EDPB) should assess what tools are necessary and strengthen the legal framework if needed.

The same report states that, due to a lack of human and financial resources, national data protection authorities often have to prioritize handling complaints over other tasks. To better support authorities that receive a large number of complaints, the EDPB should provide more guidance and facilitate the exchange of best practices. This may also require providing additional resources to the EDPB.

Additionally, it was noted that national data protection authorities are not consulted on new legislation or are given very short deadlines for analysis. To ensure that data protection principles are considered in legislative proposals, member states of the European Union should consult data protection authorities and seek their prior opinion. States should also encourage public institutions to consult more systematically with national data protection authorities.

At the same time, the institutions of the European Union and the member states of the European Union should promote awareness of the rules and obligations regarding personal data protection. The EDPB should develop specific guidelines on data processing involving new technologies.

Thus, the report "GDPR in Practice - Experiences of Data Protection Authorities" provides member states, data protection authorities, national institutions, and institutions of the European Union with a detailed overview of the practical challenges faced by staff working within national data protection authorities when implementing the tasks assigned to them under the GDPR.

The report of the European Union Agency for Fundamental Rights "GDPR in Practice - Experiences of Data Protection Authorities" can be accessed at

<https://fra.europa.eu/en/publication/2024/gdpr-experiences-data-protection-authorities>

****Legal and Communication Directorate****

****A.N.S.P.D.C.P.****